



POLICE DEPARTMENT

January 22, 2024

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2022-25565
Police Officer Veronica Martino	:	
Tax Registry No. 960894	:	
70 Precinct	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Fredy Kaplan, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
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For the Respondent: Stuart London, Esq.
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To:

HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Veronica Martino, on or about June 2, 2020, at approximately 2040 hours, while assigned to the 70 Precinct and on duty, in the vicinity of East 95th Street and Madison Avenue, New York County, wrongfully used force, in that she struck § 87(2)(b) with a baton without police necessity.

P.G. 221-02, Page 2, Paragraph 11

USE OF FORCE

2. Police Officer Veronica Martino, on or about June 2, 2020, at approximately 2040 hours, while assigned to the 70 Precinct and on duty, in the vicinity of East 95th Street and Madison Avenue, New York County, abused her authority as a member of the New York City Police Department, in that she threatened to arrest § 87(2)(b) without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT – PROHIBITED CONDUCT

3. Police Officer Veronica Martino, on or about June 2, 2020, at approximately 2040 hours, while assigned to the 70 Precinct and on duty, in the vicinity of East 95th Street and Madison Avenue, New York County, abused her authority as a member of the New York City Police Department, in that she interfered with § 87(2)(b) use of a recording device without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT – PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on December 21, 2023. Respondent, through her counsel, entered a plea of Not Guilty to the charges. The CCRB called § 87(2)(b) as a witness, and introduced into evidence video footage of the incident; a second individual, who was arrested, did not appear to testify. Respondent testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty.

ANALYSIS

On the evening of June 2, 2020, Respondent, who was assigned to the 70 Precinct, was deployed to Manhattan in connection with the George Floyd protests that were occurring throughout the city. This case involves Respondent's interactions with two separate individuals in the vicinity of East 95th Street and Madison Avenue. These encounters occurred at approximately 2040 hours, while the city's curfew was in effect.

The first matter concerns an allegation that Respondent wrongfully used force, in that she struck an individual ("the arrestee") with a baton without police necessity. Respondent concedes that she struck the arrestee with her baton, but, as will be discussed below, denies that it was excessive force under the circumstances. The second set of charges arose from what occurred in the immediate aftermath of that encounter. As other police officers were involved in taking the arrestee into custody, a resident from the block, § 87(2)(b) stepped outside his home and began recording the arrest, as well as other police activity in the area. It is alleged that Respondent wrongfully interfered with § 87(2)(b) use of his phone to record what was transpiring, and that she wrongfully threatened to arrest him as well.

With respect to the wrongful use of force charge, the arrestee did not appear to testify, but video footage from a building's surveillance camera captured his interaction with Respondent. (CCRB Ex. 1) In that video, which does not have sound, the arrestee can be seen walking on the sidewalk and gesturing toward Respondent and a second uniformed police officer, who have just moved another individual off the block. Several additional officers rush toward the arrestee from behind, and a uniformed sergeant uses his baton to drive the arrestee to the ground. That sergeant and the other officers then walk away, leaving the arrestee with Respondent and Police Officer Adnan Hussain. (CCRB Ex. 1 at 0:50-0:57)

The arrestee then stands up and interacts primarily with Officer Hussain, who is trying to gain control of the arrestee by grabbing him with his right hand. Both officers can be seen on the video swinging their batons at the arrestee during the ensuing struggle. Respondent appears to strike the arrestee several times in his left arm, as Officer Hussain grabs the arrestee with one hand and swings him around toward a parked car, trying to bring the arrestee to the ground. (CCRB Ex. 1 at 0:58-1:09) Other officers rush over, and after an additional struggle during which the arrestee continues to resist, he is brought to the ground and taken into custody by multiple officers. (CCRB Ex. 1 at 1:09-1:40)

Respondent testified that she was dispersing the crowd when she observed the arrestee struggling with Officer Hussain, who was trying to place him under arrest for violating the curfew. The arrestee was "resisting" and "yelling back" at the officer, and stiffening his body as well. Otherwise, Respondent did not observe the arrestee committing any crimes or in possession of any weapons. Respondent admitted that in the course of providing assistance to Officer Hussain, she did use her baton to strike the arrestee approximately six times, in his left arm/shoulder area. As she did so, she could feel that the arrestee was wearing a protective vest. According to Respondent, her baton strikes "were not hard at all," and the arrestee did not even flinch or appear to be affected by them. Additional officers rushed over to assist in the apprehension, and Respondent had no further contact with the arrestee. (Tr. 52-55, 59-60, 63-68, 71-73)

Regarding the allegation that Respondent interfered with a recording, § 87(2)(b) testified that he has lived in a co-op § 87(2)(b) for 25 years. From inside his apartment he heard screaming, and came downstairs to investigate. § 87(2)(b) was concerned with the well-being of the co-op's residents, as well as the property itself. He observed police officers

subduing an individual in front of the building. § 87(2)(b) came outside and began to record the interaction with his phone. He shouted to the individual that he should not resist. § 87(2)(b) described the demonstrators as “boisterous,” and he observed that objects, including bottles, were being thrown at police officers. The scene was “chaotic” and “fraught with tension.” (Tr. 23-27, 32, 38, 44-45)

At one point while he was outside recording, § 87(2)(b) was approached by a male and female officer and instructed to go inside his home; the parties agree that the female officer was Respondent. Respondent asked § 87(2)(b) if he wanted to be arrested, and she repeated that he should go home. § 87(2)(b) answered that he was home. § 87(2)(b) testified that based on research he had done as president of his co-op’s board, his understanding was that his property line extended to the area in front of his building, and so he believed he was on his property, even when standing outside. Respondent and the male officer walked away and had no further interaction with § 87(2)(b) acknowledged that at no point did they tell him to stop recording, and in fact he continued to record. He did not witness Respondent striking any of the protesters with her baton. (Tr. 27-28, 31-35, 38-39, 42-43, 47-48)

Video footage recorded by § 87(2)(b) captures his verbal exchange with Respondent (CCRB Ex. 2). § 87(2)(b) who is on the sidewalk recording what is occurring in the street, can be heard repeatedly shouting, “Don’t resist.” After a male officer instructs § 87(2)(b) to step back, and tells him he needs to be inside, § 87(2)(b) responds that he is fine. Respondent asks § 87(2)(b), “You want to get arrested too?” The male officer tells § 87(2)(b) that he is outside after the curfew, and Respondent adds, “It’s past 8:00, go home.” § 87(2)(b) answers, “I’m in home, dear. I’m home.” (CCRB Ex. 2 at 2:40-3:05) This interaction was also captured by the building’s surveillance video, which shows the male officer moving § 87(2)(b) toward the

entrance of his building, as Respondent walks over and appears to speak to § 87(2)(b) as well. (CCRB Ex. 1 at 4:22-4:42) The officers walk away, and within seconds, § 87(2)(b) is back on the sidewalk, continuing to record with his phone.

Respondent testified that she observed § 87(2)(b) standing on the sidewalk in front of his building. He was not protesting or interfering with police work. Since it was after the curfew, she instructed § 87(2)(b) to go inside unless he wanted to be arrested. She did not ask for his phone, tell him to stop recording, or interfere with his recording in any way. Despite her instruction, § 87(2)(b) did not go inside, and continued to record. Respondent walked away and had no further interaction with § 87(2)(b). Later in her tour, Respondent injured her knee when a protester pushed her to the ground. (Tr. 60-62, 69-72)

Specification 1 charges Respondent with wrongfully using force, by striking the arrestee with a baton without police necessity. Section 221-02 (11) of the Patrol Guide states that members of the service should apply no more than the reasonable force necessary to gain control of a subject, while Section 221-01 notes that any application of the use of force must be reasonable under the circumstances.

In assessing whether her use of force was reasonable, it is important to take into account the overall context of what was occurring on the block at the time, as well as the arrestee's specific interaction with the police. There was a large crowd gathered in the area, particularly at the intersection of East 95th Street and Madison Avenue, as captured in § 87(2)(b) video. (CCRB Ex. 2) According to § 87(2)(b) the protest had become violent, with bottles and other objects being thrown at police officers, creating an extremely dangerous environment. § 87(2)(b) described the situation as a "ruckus."

At the time Respondent and Officer Hussain engaged with the arrestee, he was out in public in violation of the curfew. On the one hand, counsel for the CCRB correctly notes that Respondent did not observe any weapons in the possession of the arrestee at the time she struck him with her baton. However, Respondent credibly described how the arrestee was “yelling and screaming” at Officer Hussain, and resisting Officer Hussain’s efforts to place him under arrest. The video footage (CCRB Ex. 1) shows the arrestee actively pulling away and struggling with Officer Hussain, to the point where multiple officers had to rush back to the scene in order to overcome the arrestee’s resistance.

It was in the midst of this struggle that Respondent used her baton to strike the arrestee several times in the area of his left arm/shoulder. Respondent readily acknowledged her actions, explaining that she did so in an effort to assist Officer Hussain. She credibly testified that she did not strike the arrestee hard with her baton. Since the arrestee did not appear to testify, the parties were unable to explore with him the impact of the baton strikes. However, the video footage supports Respondent’s description, as the arrestee does not visibly react to being hit by Respondent’s baton. Although the force with which she swung her baton is not dispositive on the issue of whether Respondent committed misconduct, it is an additional factor to consider in evaluating whether the force she used was excessive under the circumstances.

Under the totality of these circumstances, Respondent’s efforts to assist Officer Hussain with the arrest were reasonable. Respondent’s use of force was not excessive; rather, she used her baton in a measured manner, calculated to gain compliance from an actively resisting subject. The record has failed to establish that Respondent’s use of force constituted misconduct. Accordingly, I find Respondent Not Guilty of Specification 1.

Specification 2 charges Respondent with threatening to arrest § 87(2)(b) without sufficient legal authority, while Specification 3 alleges that she wrongfully interfered with his use of his phone to record what was occurring on the block. Section 203-29 of the Patrol Guide states that individuals have a right to lawfully observe and record police activity, though the right can be limited in the interest of safety. An officer must not intentionally block or obstruct recording devices when there is no legitimate law enforcement purpose for doing so.

Here, the parties are in essential agreement regarding what transpired: § 87(2)(b) provided straightforward, credible testimony about his interaction with Respondent, and his video recording captured the words that were exchanged. In the midst of what § 87(2)(b) described as a "chaotic" situation "fraught with tension," during which bottles were being thrown at police officers, Respondent and a male officer each told § 87(2)(b) who was standing outside his building, to go back inside. Respondent asked him if he wanted to be arrested, and emphasized that it was past 8:00 p.m. and he should go home.

In the context of the violent protest that was occurring, and considering that it was past the curfew (Resp. Ex. A), Respondent's statements to § 87(2)(b) were prudent and lawful, and did not constitute a wrongful threat of arrest. Rather, her words were *designed* to obviate the need for more intrusive measures. Furthermore, at no point did Respondent tell § 87(2)(b) to stop recording, nor did she attempt to take away his phone. Indeed, § 87(2)(b) continued to record for several minutes after his interaction with Respondent. Under these circumstances, Respondent's actions were reasonable, and I find her Not Guilty of Specifications 2 and 3.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

MAR 15 2024

EDWARD A. CABAN
POLICE COMMISSIONER



ERIC L. ADAMS
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ARVA RICE
INTERIM CHAIR

January 19, 2024

Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: Police Officer Veronica Martino
Disciplinary Case Nos. 2022-25565

Commissioner Caban:

The above-referenced case was tried on December 21, 2023, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Jeff S. Adler, dated January 4, 2024. I respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Veronica Martino was charged with the following:

1. Police Officer Veronica Martino, on or about June 2, 2020, at approximately 2040 hours, while assigned to the 70 Precinct and on duty, in the vicinity of East 95th Street and Madison Avenue, New York County, wrongfully used force, in that she struck § 87(2)(b) with a baton without police necessity.

P.G. 221-02, Page 2, Paragraph 11 USE OF FORCE

2. Police Officer Veronica Martino, on or about June 2, 2020, at approximately 2040 hours, while assigned to the 70 Precinct and on duty, in the vicinity of East 95th Street and Madison Avenue, New York County, abused her authority as a member of the New York City Police Department, in that she threatened to arrest § 87(2)(b) without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT – PROHIBITED CONDUCT [now encompassed by Administrative Guide 304-06, page 1, paragraph 1 PROHIBITED CONDUCT]

3. Police Officer Veronica Martino, on or about June 2, 2020, at approximately 2040 hours, while assigned to the 70 Precinct and on duty, in the vicinity of East 95th Street and Madison Avenue, New York County, abused her authority as a member of the New York City Police Department, in that she interfered with § 87(2)(b) use of a recording device without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT –PROHIBITED CONDUCT [now encompassed by Administrative Guide 304-06, page 1, paragraph 1 PROHIBITED CONDUCT]

The Court found Respondent Martino not guilty of Specifications One (1), Two (2), and Three (3).

It is respectfully requested that you reject ADCT Adler's findings and find the Respondent guilty of Specifications One (1), Two (2), and Three (3) and accept CCRB's recommended penalty of Twenty (20) days.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

The relevant evidence introduced at trial by CCRB were CCRB Exhibits 1, a building surveillance video which captured Respondent's use of force against § 87(2)(b) the recipient of Respondent's six (6) baton strikes; Exhibit 2, the cell phone footage provided by the complainant in this matter, § 87(2)(b) which captured Respondent's interference with § 87(2)(b) recording of the protest events as they took place, as well as her threat of arrest statement made to § 87(2)(b) CCRB also presented § 87(2)(b) who testified to said occurrences that transpired between Respondent and himself.

In CCRB Exhibit 1, from 00:50 – 00:56, § 87(2)(b) is seen entering the frame from the bottom edge, wearing a head cloth and dark blue jacket. He is alone, emptyhanded, and does not commit any violation or crime. He is only outside after the first curfew took effect. He does not approach any officer closely. One of the Co-Respondents in this case, Lieutenant (Lt.) Ramon Ruiz, who plead to the charges in the herein matter, enters the frame from the bottom right corner, holding his baton across his chest, and with one hand on either end of the baton's length. Another Co-Respondent in the case, Police Officer (PO) Hussain jogs behind him, trailing Lt. Ruiz by a few steps. While running, Lt. Ruiz slams his baton into § 87(2)(b) shoulders, neck, and head from behind, knocking § 87(2)(b) forward and to the ground. Lt. Ruiz stands over § 87(2)(b) briefly, then walks away, leaving the video frame via the bottom edge. Three additional officers (including the officer originally walking near Respondent, follow Lt. Ruiz out of the frame, and these officers collectively, take no actions to apprehend § 87(2)(b) indicating and verifying that § 87(2)(b) did not and was not committing any crimes or arrestable offences. Then PO Hussain is seen using one hand to pull § 87(2)(b) up from the ground and then strikes him once with his baton, as Respondent stands there with her baton out and positioned for use. Then for approximately four seconds, there is a pause where neither Respondent nor PO Hussain use force against § 87(2)(b) who remains standing in one place while talking to both officers.

From 00:57 to 1:23 of Exhibit 1, the surveillance video shows Respondent and PO Hussain both begin to use force again upon § 87(2)(b) Respondent strikes § 87(2)(b) on his upper body and shoulder area four times with her baton while PO Hussain uses his right hand to grip § 87(2)(b)

clothing at the chest and push him backwards up against the building wall. Throughout this portion of the video surveillance § 87(2)(b) does not resist or attack either Respondent or PO Hussain, is not attempting to run away, nor is he doing anything criminal that he could be arrested for. Respondent and PO Hussain continue to use their batons on § 87(2)(b) as several officers enter the frame from the bottom edge and use force which pushes § 87(2)(b) west along the sidewalk towards 30 E. 95th Street, which is where § 87(2)(b) resides.

In CCRB Exhibit 2, from 2:45 through 3:13, the video footage shows § 87(2)(b) standing in the threshold front of his building § 87(2)(b) and film officers escort a protester away from the scene. An apparently male voice tells § 87(2)(b) to step back, and § 87(2)(b) tells the officer that he is fine. Respondent then approaches § 87(2)(b) while he is recording the events on his cell phone, and states to § 87(2)(b) “you gotta go inside, do you want to get arrested too?” § 87(2)(b) replies that he is home. Respondent then steps away from § 87(2)(b) her profile and helmet number are clearly visible.

§ 87(2)(b) testified that upon hearing a commotion taking place between protestors and police officers outside of his building, he went downstairs to make sure the glass on the front door of the building was not damaged, as it had been recently replaced. When he came downstairs, he was able to see through the glass doors several police officers subduing and taking to the ground a young man, who turned out to be § 87(2)(b) (Transcript 25). He went through the front door of the building and began to record the situation as he saw officers hitting § 87(2)(b) numerous times with their batons. Without straying from the threshold of his building, § 87(2)(b) began to yell at § 87(2)(b) to not resist and that he is taping the incident. An officer then came over to § 87(2)(b) and used his baton against him, causing § 87(2)(b) to fall backwards onto a planter by the front door of the building. (Transcript 26, 27). Upon getting up from the ground at the threshold of his building and continuing to monitor the activities going on right in front of his building, he was approached by Respondent who told him to ‘go home, go inside, do you want to get arrested, are you going to get arrested?’ (Transcript 27). § 87(2)(b) testified that he responded to Respondent that he was home, and that this is his home. (Transcript 28). § 87(2)(b) testified that he felt that he was home as he was on the threshold of his building right next to the door of his building. (Transcript 32). He then testified that prior to Respondent approaching him, he was recording the arrests of several protestors. Although his cell phone was still recording during his interaction with Respondent, the only images being captured were Respondent’s uniform, protective gear, face guard, helmet, and plastic cuffs, as she stood in front of § 87(2)(b) cell phone obstructing his recording of the protestors being arrested. (Transcript 33, 34).

SUMMARY OF RESPONDENT’S TESTIMONY

On her direct testimony, Respondent testified that she saw PO Hussain struggle with an individual § 87(2)(b) and she struck him with her baton six times. Other than being outside after 8:00 p.m. after curfew was in effect, PO Hussain did not communicate to Respondent what § 87(2)(b) did, or had done, to warrant struggling with him in the manner that he did or try to place him under arrest. (Transcript 53). Respondent stated that she struck § 87(2)(b) on his left arm and shoulder area but ‘did not put a lot of strength on it.’ (Transcript 54). After striking § 87(2)(b) six times, Respondent took no further actions to apprehend § 87(2)(b) or place him under arrest, and just walked away. (Transcript 55). Respondent testified that she did not recall any conversations going on between herself and § 87(2)(b) nor between PO Hussain and § 87(2)(b) at any time during the interaction with § 87(2)(b) (Transcript 59). The Respondent did not have any further dealing with § 87(2)(b) after she walked away. She was not involved with cuffing him and had no further

contacts with § 87(2)(b) (Transcript 60). With regards to § 87(2)(b) Respondent testified that she saw him standing on the sidewalk right in front of his building, and she told him he had to go back inside or if he wants to get arrested, to which § 87(2)(b) responded that he was home. (Transcript 61).

On cross examination, when shown CCRB Exhibit 1, Respondent confirmed that she was with PO Hussain and they initially pursued an individual who had a pushcart with a loudspeaker, who then continued up the street. When both Respondent and PO Hussain then turned around, they saw § 87(2)(b) standing there, and aside from being outside after curfew, he was not committing any crimes or arrestable offenses. (Transcript 63). Respondent testified that she did not see any type of weapons on § 87(2)(b) and did not recall if there were any communications at that time between herself and PO Hussain. Respondent then saw police officers coming from behind § 87(2)(b) and one of the officers hit § 87(2)(b) from behind with his baton, causing him to fall to the ground. (Transcript 64). During the time that § 87(2)(b) was on the ground, Respondent stated that all the officers surrounded § 87(2)(b) but did not observe him commit any crimes or arrestable offenses, nor were any crimes or arrestable offenses communicated to her by the other officers present. Respondent testified that § 87(2)(b) began yelling and screaming at the officers but emphasized that being outside after curfew and yelling and screaming at the officers would not be enough to arrest § 87(2)(b). Respondent then stated that once § 87(2)(b) was on the ground, the other officers, except for PO Hussain, left and did not execute any arrest on § 87(2)(b) (Transcript 65). Respondent testified that PO Hussain then helped § 87(2)(b) get up from the ground, and she still did not observe any crimes or arrestable offenses being committed by § 87(2)(b) nor was he trying to run away from the two officers. Respondent testified that words were exchanged between herself and PO Hussain but could not recall what those words were. (Transcript 66). Respondent then testified that at some point in the interaction, PO Hussain had § 87(2)(b) against the wall of the building, and swung him around onto the sidewalk. During this one action, Respondent and PO Hussain both struck § 87(2)(b) with their batons numerous times. Respondent stated she struck § 87(2)(b) six times. (Transcript 67). Respondent testified that the only reason she struck § 87(2)(b) numerous times with her baton was because she believed he was not being compliant with PO Hussain because he was yelling and screaming at them (which she earlier stated was not an arrestable offense), arguing back and was stiffening his body (Transcript 73).

With regards to § 87(2)(b) Respondent testified that when she approached him, he was standing in the general vicinity of the awning in front of his building, and that she did not think he was a protestor, nor interfering with any police activities. He was also not doing anything he could be arrested for. (Transcript 69). Respondent testified that she told § 87(2)(b) to go inside ‘do you want to be arrested.’ (Transcript 70). Respondent testified that she did not find any reason to arrest § 87(2)(b) did not feel threatened by him, and did not see him again that night. (Transcript 71).

RESPONDENT IS GUILTY OF WRONGFULLY USING FORCE AGAINST
§ 87(2)(b) WITHOUT POLICE NECESSITY

CCRB disagrees with the tribunal’s finding that the use of force by Respondent was reasonable and was used in a measured manner calculated to gain compliance from § 87(2)(b) who was actively resisting arrest. (Draft Decision 7). While the evidence undoubtedly showed § 87(2)(b) was outside on the street past the curfew, the evidence also showed that he may not have been issued a mandatory dispersal order, as per the requirements of Emergency Executive Order No.: 118, from either Respondent, or from of any of the other officers involved in the herein incident, and that he resisted said dispersal order, which would have been a lawful reason to arrest

him. The evidence showed that Respondent was not aware if § 87(2)(b) was issued any dispersal order, and/or violated said order, nor did she observe § 87(2)(b) commit any crimes or arrestable offenses during the encounter. (Transcript 63). Respondent testified that she did not recall any communications between herself and PO Hussain at any point during the incident with § 87(2)(b) that would have indicated to her that § 87(2)(b) committed an arrestable offense, or that PO Hussain was trying to arrest § 87(2)(b) or that § 87(2)(b) was actively resisting being arrested. (Transcript 64). In addition, the evidence showed that none of the officers involved with knocking § 87(2)(b) to the ground prior to Respondent's use of force on him, executed or attempted to execute any arrest on § 87(2)(b) which clearly indicated that he did not commit any arrestable offense.

While the evidence showed that § 87(2)(b) may have been argumentative with the officers, Respondent testified that merely being outside after curfew, regardless of a dispersal order, and "yelling and screaming" at the officers would not be enough to arrest someone. (Transcript 65). Therefore, it is clear that Respondent did not use her baton six times against § 87(2)(b) in an effort to assist in his arrest, but rather used her baton, unlawfully and unreasonably, to punish him for being out on the street after curfew.

The Tribunal's consideration of the impact of the force used by Respondent upon § 87(2)(b) rather than the use of force itself, along with the amount of times Respondent struck § 87(2)(b) with her baton, is not in accordance with Section 221-02 of the Patrol Guide. In determining whether the use of force is reasonable, Section 221-02 lists eleven (11) specific factors to consider, none of which is the impact of the force used on an individual. The evidence established several of these 11 considerations thereby establishing that Respondent's use of force was unreasonable, let alone excessive. The fact that Respondent unnecessarily struck § 87(2)(b) six times with her baton, regardless of the impact of said baton strikes, or that § 87(2)(b) did not visibly react to being hit by those baton strikes, is proof of Respondent's misconduct, and was a violation of 221-02 of the Patrol Guide.

As such, Respondent is guilty of wrongfully using force against § 87(2)(b) in that she struck him with her baton without police necessity.

**RESPONDENT IS GUILTY OF THREATENING TO ARREST § 87(2)(b) AND
FOR INTERFERING WITH HIS USE OF A RECORDING DEVICE**

CCRB disagrees with the Tribunal's finding that Respondent's words and the actions taken against § 87(2)(b) were prudent, lawful, and reasonable given that he was outside on the street after curfew. The purpose and aim of Emergency Executive Order No.: 118 was to keep protesters off the public streets after a certain hour, and not interfere with any police activity. It was not aimed at people, like § 87(2)(b) who were merely standing in front of their homes observing police and protester activity. At the time that Respondent approached § 87(2)(b) he was home and standing on the threshold of his building, recording the arrests of several protestors. He was not out on a public street taking part in the protests, nor was he interfering with any police activity. Respondent testified that at the time she made the threat to arrest statement to § 87(2)(b) he was not committing any arrestable offense. (Transcript 69). As such, by Respondent's own admission, she abused her authority and lacked justification to threaten § 87(2)(b) with arrest. As her threat to arrest § 87(2)(b) coincided with his recording of the arrests of several protestors occurring at the time, thereby preventing him from recording said arrests, Respondent interfered with § 87(2)(b) legally protected rights to record the police activity taking place.

As such, Respondent is guilty of threatening to arrest § 87(2)(b) without sufficient legal authority and guilty of interfering with his use of a recording device without sufficient legal authority.

CONCLUSION

For all the aforementioned reasons, CCRB asks you to carefully review the evidence, which strongly supports a finding of guilt on all the charged Specifications for Respondent. Based on the presented arguments above, Police Officer Veronica Martino is Guilty of Specifications One (1), Two (2), and Three (3) and CCRB recommends the penalty of Twenty (20) days.

Respectfully submitted,

Fredy H. Kaplan

Fredy H. Kaplan
Prosecutor
Administrative Prosecution Unit
Civilian Complaint Review Board

Cc: Stuart London, Esq.